

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-25-00190-CR

CHRISTOPHER HUNTER ROSENTHAL, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 71st District Court
Harrison County, Texas
Trial Court No. 25-0329X

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Justice Rambin

MEMORANDUM OPINION

After the State charged him with one count of super-aggravated sexual assault of a child and eleven counts of possession of child pornography, Christopher Hunter Rosenthal entered into a plea-bargain agreement with the State. Pursuant to the agreement, Rosenthal pled guilty to one count of aggravated sexual assault of a child[1] and four counts of possession of child pornography.[2] The trial court found Rosenthal guilty and imposed sentences of thirty years for aggravated sexual assault of a child and ten years on each count of possession of child pornography, in accordance with the plea agreement.[3]

Rosenthal signed a written-plea admonishment, including a waiver of his right to appeal. At the plea hearing, the trial court questioned Rosenthal as to whether he understood that he had waived his right to appeal, to which Rosenthal replied, "Yes, Your Honor." Furthermore, the trial court's certification of Rosenthal's right to appeal states, "[T]he defendant has waived the right of appeal." Despite that, Rosenthal filed a timely notice of appeal.

Based on the trial court's certification and Rosenthal's signed waiver, on January 6, 2026, this Court informed Rosenthal of an apparent defect in our jurisdiction. We asked Rosenthal to show the Court, within twenty days of the date of the letter, how this Court has jurisdiction over his appeal. We also warned Rosenthal that if we did not receive a satisfactory response from him

[1]*See* TEX. PENAL CODE ANN. § 22.021(a)(2)(B) (Supp.).

[2]*See* TEX. PENAL CODE ANN. § 43.26(d) (Supp.).

[3]Consistent with Rosenthal's plea-bargain agreement, the trial court sentenced Rosenthal to thirty years' confinement on count one, ten years' confinement on count two to be served consecutively with count one, ten years' confinement on count three to be served consecutively with counts one and two, and ten years' confinement on counts four and five, each to run concurrently with counts one, two, and three.

on or before January 26, 2026, we would have no choice but to dismiss his appeal for want of jurisdiction.

On January 26, 2026, Rosenthal provided a response in which he asserted that a jurisdictional matter allows him to avoid the effect of his waiver of appeal. In that jurisdictional response, Rosenthal did *not* contest that the record shows (and the trial court certified) that: (1) the sentences imposed by the trial court are consistent with the plea bargain Rosenthal made, and (2) as part of the plea bargain, Rosenthal waived his right to appeal. Instead, Rosenthal asserted that: (1) he was *already* in the Harrison County Jail on other charges when he was indicted on the present charges, (2) he appeared in person at the plea hearing in this case, but (3) he was not arrested on the present charges until *after* the trial court conducted a hearing on the plea agreement, accepted the plea agreement, and sentenced Rosenthal as set forth above. Rosenthal asserted that that sequence resulted in: (a) a violation of his right to be served with a copy of the charges against him at the time of his arrest, which, in Rosenthal's view, (b) "present[s] a procedural dilemma," because (c) it impacted "[t]he trial court's personal jurisdiction [over him] at the time of the plea," and (d) "a plea-bargaining defendant has the right to appeal jurisdictional issues." Rosenthal did not cite any authority for the proposition that the sequence he complained of presented a jurisdictional matter. Nonetheless, we elected to allow full briefing.

On full briefing, Rosenthal acknowledged that the violation he asserts "does not invalidate the charging instrument or divest the [trial] court of jurisdiction." *See Alexander v.*

State, 137 S.W.3d 127, 130 (Tex. App.—Houston [1st Dist.] 2004, pets. ref'd). Thus, upon full briefing, Rosenthal's effort to avoid the effect of his waiver of appeal fell short.[4]

As noted above, Rosenthal has not challenged the validity of the waiver of his right to appeal. Rule 25.2(a)(2)(A)–(B) of the Texas Rules of Appellate Procedure provides that a defendant who entered into a plea bargain "may appeal only . . . those matters that were raised by written motion filed and ruled on before trial, . . . after getting the trial court's permission to appeal." TEX. R. APP. P. 25.2(a)(2)(A)–(B). Rosenthal points us neither to any written motion ruled on at trial nor to the trial court's permission to appeal. Nor does Rosenthal claim that his appeal is expressly authorized by statute. *See* TEX. R. APP. P. 25.2(a)(2)(C).

Because Rosenthal has no right to appeal, the Court must dismiss his appeal.

Accordingly, we dismiss this appeal for want of jurisdiction.

Jeff Rambin
Justice

Date Submitted: October 1, 2026
Date Decided: October 5, 2026

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[4]Additionally, we note that even though Rosenthal had not been arrested on the present charges at the time of the plea hearing, the record shows that he had been provided a copy of the indictment in this case prior to the plea hearing and was aware of the charges to which he was pleading guilty. The record further shows that Rosenthal's indictment in this case was filed on August 28, 2025, and that trial counsel appeared on his behalf on September 4, 2025.